



U.S. Department  
of Transportation

Research and  
Special Programs  
Administration

400 Seventh Street, S.W.  
Washington, D.C. 20590

FEB 15 1991

DOT-E 10543

1. U.S. Department of Defense, Washington, DC, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a Class B explosive for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of charges, propelling, for cannon by cargo aircraft, and provide no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on an application dated February 14, 1991, submitted by the Department of Defense (Department of the Army) in accordance with 107.113. Granting of this exemption is in the national interest, based on a statement by the Department of the Army.

3. HAZARDOUS MATERIALS (Descriptor and class). Charges, propelling, for cannon (M119A2 red bag charge propellant for 155mm howitzer cannon) (EX-8810331), UN 0242, Class B explosive.

4. PROPER SHIPPING NAME (49 CFR 172.101). Charges, propelling, for cannon (ICAO).

5. REGULATION AFFECTED. 49 CFR 171.11, 172.101, Column (2), 175.3, 175.320.

6. MODES OF TRANSPORTATION AUTHORIZED. Cargo aircraft only.

7. SAFETY CONTROL MEASURES. Packaging, marking and labeling must be in accordance with the International Civil Aviation Organization's (ICAO) Technical Instructions.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption.

b. The carrier must conform to the requirements of 49 CFR 175.320(b) except subparagraphs (5) and (7).

c. The explosives are scheduled to depart Seneca Army Airfield, Romulus, NY destined for Riyadh, Saudi Arabia, transported by Air Charter Systems.

d. This exemption does not grant authority to use foreign controlled airspace or airports outside the United States.

e. No other cargo is authorized aboard the aircraft.

f. The explosives must be loaded and unloaded by or under the direct supervision of Department of Defense personnel.

9. REPORTING REQUIREMENTS: Any incident involving fire, explosion, or loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. April 1, 1991.

Issued at Washington, D.C.



Alan I. Roberts  
Associate Administrator  
for Hazardous Materials Safety

FEB 15 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.  
Attention: Exemptions Branch.

Dist: FAA.